



United States
Attorney's Office
Western District of Pennsylvania



Pittsburgh-Area Nursing Home Companies Ordered to Pay More Than \$15 Million in Restitution for Health Care Fraud

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For Immediate Release

U.S. Attorney's Office, Western District of
Pennsylvania

PITTSBURGH, Pa. – Companies operating two Pittsburgh-area nursing homes have been sentenced in federal court to pay a total of more than \$15 million in restitution for their convictions of making false statements in connection with the payment of health care benefits and for the purpose of obstructing and impeding the investigation and proper administration of a matter within the jurisdiction of the Centers for Medicare & Medicaid Services (CMS), Acting United States Attorney Troy Rivetti announced today. Comprehensive Healthcare Management Services, LLC, d/b/a Brighton Rehabilitation and Wellness Center (Brighton) and Mt. Lebanon Operations, LLC, d/b/a Mount Lebanon Rehabilitation and Wellness Center (Mt. Lebanon) were found guilty on six and four counts, respectively, by a federal jury in December 2023 (read the verdict news release [here](#)).

United States District Judge Robert J. Colville imposed the sentences, ordering Brighton to pay \$12,629,257.46 in restitution to the U.S. Department of Health & Human Services in addition to serving five years of probation and Mt. Lebanon to pay \$2,721,312.10 in restitution and to serve one year of probation.

"Protecting the health, safety, and dignity of the residents of these nursing facilities and ensuring adequate staff to care for these vulnerable resident populations has been our office's primary focus and objective throughout this prosecution," said Acting U.S. Attorney Rivetti. "Choosing to prioritize profits over patient care, these facilities lied and falsified records regarding meeting minimum requisite staffing levels to avoid sanctions and to continue to receive federal funding, all the while failing to provide residents with the level and quality of care they deserved."

"Families counted on these facilities and their operators to care for their loved ones with honesty, integrity, and compassion. Instead, these facilities put profits over people," said FBI Pittsburgh Special Agent in Charge Kevin Rojek. "Nursing home operators who lie to the government agencies providing

oversight and keeping watch endangers lives and erodes public trust. These facilities failed their residents, and today's outcome is a step toward justice."

"Safeguarding residents from harm and ensuring nursing facilities comply with CMS staffing levels is a top priority," said Special Agent in Charge Maureen Dixon, for the Department of Health and Human Services–Office of Inspector General (HHS-OIG). "Healthcare providers are required to provide accurate and truthful information, and false claims to CMS for healthcare services will not be tolerated. HHS-OIG will continue to work with our law enforcement partners to prevent patient harm and fight fraud, waste, and abuse in federal healthcare programs."

Evidence presented at the December 2023 trial established that, acting through high-level personnel and other employees, Brighton and Mt. Lebanon falsified staffing information provided to the Pennsylvania Department of Health and CMS to show that the facilities were in compliance with the conditions of participation in Medicare and Medicaid. The false certifications—which included, for example, various employees adding the names of individuals who were not actually working, not providing direct patient care, and, in some cases, not even in the building, to staffing sheets to make it appear that the requisite minimum staffing ratio was being met—enabled the corporations to evade penalties for failing to provide sufficient staffing to meet the needs of the residents. Testimony also established that the facilities continued to push for new patient admissions despite low staffing levels and nurses at the facilities advising that they could not adequately care for additional residents.

Prior to imposing sentence, Judge Colville heard testimony and received impact statements from family members of several former residents of the facilities, including a female resident who was seriously injured from a violent physical assault by a male resident when no nursing home staff were present to prevent the abuse or come to the victim's aid. These family members described a significant decline in staffing following acquisition of the nursing homes by the defendant companies and detailed how decreased staffing levels negatively impacted their relatives' care, treatment, health, well-being, and hygiene.

In imposing sentence, Judge Colville described the defendants' actions as "a tragic set of events" that not only increased the risk of inadequate care for the facilities' patients but also impacted the lives of the facilities' employees and the general public, who expect that health care facilities will operate lawfully. Judge Colville noted that the nursing facilities' actions resulted in the government and taxpayers being defrauded and the loss of care to patients.

Assistant United States Attorneys Nicole A. Stockey and Jacqueline C. Brown, along with Special Assistant United States Attorney Aaron McKendry, prosecuted this case on behalf of the government.

Acting United States Attorney Rivetti commended the Federal Bureau of Investigation, the Department of Health & Human Services–Office of Inspector General, the Internal Revenue Service–Criminal Investigation, and the Pennsylvania Office of Attorney General for the investigation leading to the successful prosecution of the facilities.

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